

Motion to Correct the Certified Agency Record

Omission identified

On February 26, 2025, A.R.M. moves under Federal Rule of Appellate Procedure 16(b) to correct an omission from the agency transmission. The February 18 index jumps from AR32 to AR51 and contains no pages for the eighteen-page P-7 declaration. The hearing receipts and transcript, however, identify P-7 as A.R.M.’s sworn declaration and state that it was admitted without an authenticity or timeliness objection. The agency decisions also describe it as part of the evidence.

The motion asks the court to restore that same admitted declaration at AR33–AR50. It does not seek to add a later account, revise P-7’s text, or change any label after AR50. The relief would make the transmitted set reflect the material already before the immigration judge and Board while preserving the February 18 index as evidence of what was initially sent.

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Admission evidence

At AR117 the immigration judge identifies P-7 as the eighteen-page declaration lodged before the merits hearing, confirms the respondent's lack of authenticity or timeliness objection, and admits it. AR138 and AR139 record the clerk's confirmation that P-7 remained admitted when the hearing continued. AR161 again states that no portion was excluded, and AR164 lists P-7 among the admitted exhibits considered in the written decision.

Those pages establish historical admission independently of the later transmission. The motion does not ask the court to infer admission from counsel's current description or from the declaration's subject matter. Instead, it uses the contemporaneous hearing record and decision to show that the missing pages belonged in the review record before the export was prepared. The respondent may contest the requested correction, but the admission proposition rests on identified agency pages rather than post-order evidence.

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Initial transmission gap

The initial index at AR219–AR226 is retained exactly as transmitted. Its sequence assigns AR21–AR32 to the CAT application and then begins the next listed document at AR51. A control notation records an eighteen-label discontinuity, but the packet does not include P-7, reserve a placeholder file, or explain why the admitted declaration is absent. The certification speaks to the selected export produced on February 18, not to a later audit result.

A.R.M. asks that this historical packet remain in the corrected record so the court can see both the original omission and the later remedy. Removing or rewriting it would obscure the very discrepancy Rule 16(b) is meant to address. The requested correction should add the unchanged declaration in its proper location and a later itemized certification, leaving the original index available for comparison rather than pretending that the first transmission was complete.

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Exact object identity

The object requested for restoration is `04-arm-sworn-declaration.pdf`, titled “A.R.M. Sworn Declaration,” containing eighteen pages. Its SHA-256 is `08e8294532c23fe9feb5962ca5b7780ae958178e6c8e2b4840d1ee28f3c5d212`. Counsel obtained that value from the stored exhibit object and compared it with the April lodging receipt, September hearing receipt, transcript descriptions, and agency-file inventory.

Object identity is central because correction cannot become an opportunity to revise the declaration after the Board order. Counsel asks the records office to compare the proposed restored file page by page, confirm the digest and page count, and certify that no annotation, paragraph, attachment, or translation has been added or removed. If the stored bytes do not match those controls, the requested order should not authorize substitution. The motion seeks restoration of one preexisting object, not reconstruction from counsel’s copy.

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Correction distinguished from supplementation

The missing P-7 declaration existed before the merits hearing, was admitted during that hearing, and was acknowledged by both agency decisions. Restoring it therefore corrects what the transmission omitted. T.R.'s February 20 declaration presents the opposite chronology: it arose after the January 13 Board order and was never offered to either agency tribunal. A.R.M. has filed a separate motion concerning that proffer and does not ask that it receive an AR label.

Keeping the requests separate protects the legal and factual boundary of the petition. The court can grant correction after verifying the identical P-7 object while denying supplementation of later material. Such paired rulings would not express a view about the truth or weight of either declaration. They would determine only which document belonged to the record on which the Board acted and which document remained a later appellate filing.

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Service and proposed verification

Counsel certifies electronic service on the institutional respondent on February 26, 2025. The motion requests a joint comparison of the exhibit receipts, transcript, agency decisions, stored P-7 object, initial index, and file-selection log. It proposes that the parties state any agreement in a Rule 16(b) stipulation and that the records office file an itemized corrected index showing all eighteen agency documents and their continuous page ranges.

A second clerk should verify the digest, page count, and placement of P-7 before the corrected certification is served. The initial transmission should remain preserved, and the separate proffer should remain excluded. These safeguards allow the court to identify the exact correction and later test the certification without relying on counsel's assertion alone. The respondent's formal position is expected in its record-motions response; this motion does not presume agreement before that filing.